

1 Eli Dalton-Webb
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3 Sierra Vista, Arizona 85650
4 email: dw4az@proton.me
5 Plaintiff
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CLERK OF THE
SUPERIOR COURT
*****FILED*****
V. DIAZ, DEPUTY CLERK
2026 JAN 05 AM 09:21

7 **IN THE SUPERIOR COURT OF THE STATE OF ARIZONA**
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9 **IN AND FOR THE COUNTY OF MARICOPA**
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11 Eli Dalton-Webb, a candidate for Clerk of 12 the Superior Court 13 14 Plaintiff 15 16 v. 17 18 ADRIAN FONTES, in his official 19 capacity as Arizona Secretary of State, 20 MELISSA AVANT, in her official 21 capacity as Officer in Charge of Elections 22 in Cochise County, BILLY CLOUD, in 23 his official capacity as Cochise County 24 Recorder 25 26 Defendants, 27 28	Case No. CV2026-000232 Assigned to: Motion for Expedited Declaratory Judgment; Motion for Expedited Injunction
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30 1. Plaintiff hereby requests expedited decision on this matter, for both the
31 declaratory and injunctive relief requested in his Complaint.
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34 2. The Court may construe this as a (1) motion for speedy hearing of a
35 declaratory judgment action within the meaning of Civil Procedure Rule 57; and (2)
36 motion for preliminary injunction and/or temporary restraining order and/or
37 consolidating the hearing with the trial on the merits within the meaning of Civil
38 Procedure Rule 65; and (3) construing this motion any other way as appropriate.
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1 3. The primary election is on Tuesday, 4 August 2026, pursuant to A.R.S. § 16-
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3 201. (see also Secretary of State Election Calendar 2025-2026, on Page 12 of the
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5 PDF¹)
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7 4. Pursuant to both 16-311(A) and A.R.S. § 16-341(C), Plaintiff must turn in
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9 signatures by Monday, 6 April 2026. (see also Secretary of State Election Calendar
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11 2025-2026, on Page 7 of the PDF²)
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13 5. Plaintiff must collect hundreds of signatures and needs to start collecting
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15 them as soon as possible, so that he can turn them in by the deadline. Each day that
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17 this case is unresolved causes irreparable harm to Plaintiff.
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19 6. Plaintiff respectfully requests this Court to issue all equitable relief in a
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21 prompt manner.
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29 Submitted respectfully this day, 5 January 2026,
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36 /s/Eli Dalton-Webb



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44 1 <https://azsos.gov/sites/default/files/docs/2025-2026-Elections-MasterCalendar-08012025.pdf>

45 2 <https://azsos.gov/sites/default/files/docs/2025-2026-Elections-MasterCalendar-08012025.pdf>
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